

1	Cruz vs. Lomeli 30-2024-01427526	<u>Motion to Set Aside</u> Defendants Isis Lomeli's and Gustavo Lomeli's Motion to Set Aside Default is DENIED as unnecessary and moot <u>Pending Motion</u> Defendants Isis Lomeli and Gustavo Lomeli move "for order vacating and setting aside the default judgment entered in this action . . . and for leave to file the attached proposed answer demurrer". (Notice of Mot. and Mot. to Set Aside Default at p. 1.) <u>Standard to Set Aside Entry of Default or Default Judgment</u> The Civil Procedure Code grants the court discretion to "relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) However, the court records show that no default has been entered against Defendant Isis Lomeli or Defendant Gustavo Lomeli, nor has any default judgment been issued against either of them. Therefore, Defendants do not need to set aside the any entry of default or default judgment. Defendants may file and serve their demurrer, answer, or other responsive pleading at any time, without further leave to the court. In addition, the court has ordered Plaintiff Patricia Cruz to pay sanctions in the amount of \$500 to the court by May 10, 2026. (See ROA #71.) Although Plaintiff has attempted to dismiss the entire case, the case cannot be dismissed until the sanctions are paid. (See ROA #87.) Therefore, the court will deny the motion as moot and unnecessary. The court clerk shall give notice of this ruling.
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2	Kwak vs. Progeny Psychiatric Clinic 30-2025-01482453	<u>Demurrer</u> Plaintiff Deborah Kwak's Demurrer is OVERRULED. <u>Pending Motion</u> Plaintiff Deborah Kwak demurs to "the First, Second, Third and Fourth Causes of Action in the Demurrer and Motion to Strike." (Pltf. Dem.; Mem. of P.s&A.s at p. 2:9-10.) <u>Standard for Demurrer</u> Civil Procedure Code section 430.10 provides that: The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer . . . to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading. (b) The person who filed the pleading does not have the legal capacity to sue. (c) There is another action pending between the same parties on the same cause of action. (d) There is a defect or misjoinder of parties. (e) The pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible. (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the